

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/22/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922
CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE
*HEARING ON MOTION IN RE: CONTINUE TRIAL IN ORDER TO HEAR DEFENDANTS' MOTION FOR SUMMARY JUDGMENT
FILED BY: CAREPATROL FRANCHISE SYSTEMS, LLC
TENTATIVE RULING:
Off calendar. Withdrawn by moving party.

2. 9:00 AM CASE NUMBER: C22-02520
CASE NAME: ETIENNE VS. RICHMOND AMERICAN HOMES OF CALIFORNIA, INC.
*HEARING ON MOTION IN RE: VACATE DISMISSAL
FILED BY: ETIENNE, LINSAY
TENTATIVE RULING:

Plaintiffs' motion to set aside the July 23, 2025, dismissal of this action, pursuant to CCP section 473(b), is **granted**.

A Case Management Conference is set for **March 26, 2026, at 8:30 a.m. in Department 16**. The parties are ordered to file and serve a completed Case Management Statement at least 15 calendar days before the Case Management Conference.

Background

This is a construction defect action filed in 2022 by multiple homeowner plaintiffs against Richmond American Homes of California, Inc. and related entities. The case proceeded through 2024 and 2025 with the court setting a series of case management conferences (CMCs) and issuing orders concerning plaintiffs' appearances and prosecution of the action. Plaintiffs' counsel appeared at certain CMCs, including hearings on October 30, 2024, and March 25, 2025, at which subsequent hearing dates were set. During this period, the court issued multiple notices and orders relating to CMCs and an Order to Show Cause (OSC) regarding dismissal for failure to prosecute.

Plaintiffs did not file CMC statements or appear at several subsequent hearings. On July 23, 2025, the court held an OSC re: dismissal for failure to appear at the CMC and failure to prosecute. Plaintiffs did not appear at that hearing. The court dismissed the action without prejudice on July 23, 2025 for failure to appear and prosecute the case.

On August 14, 2025, Plaintiffs filed a motion to set aside the dismissal of this action pursuant to the mandatory and discretionary relief provisions of CCP section 473(b). The motion was accompanied by a declaration from plaintiffs' counsel, Saba Sheida, in which Mr. Sheida states that the dismissal was the result of "overlapping service interruptions – mail forwarding failures after [an] office relocation and multiple, prolonged, email server outages."

Defendants Richmond American Homes of California, Inc. and Richmond American Homes of Maryland, Inc. filed an opposition on January 14, 2026, together with a declaration of defense counsel describing the procedural history, service of notices, and defendants' position regarding the reasons for plaintiffs' failure to prosecute the case.

Legal Standard

Under CCP section 473(b), both discretionary and mandatory relief is available to parties when a case is dismissed. Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP § 473(b).)

Alternatively, mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (*Id.*) The purpose of the attorney affidavit provision is to "relieve the innocent client of the burden of the attorney's fault, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits." (*Hu v. Fang* (2002) 104 Cal.App.4th 61, 64.)

An application for discretionary or mandatory relief from dismissal must be made no more than six

months after the dismissal is entered. (CCP § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court[.]” (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 981-82.)

Analysis

Plaintiff moves for mandatory relief pursuant to CCP section 473, subdivision (b). Plaintiff argues relief under section 473(b) is mandatory because counsel attaches a declaration of fault due to counsel's mistake, inadvertence, surprise, or neglect, and the motion was timely filed within six months after the court dismissed the case.

Plaintiff's counsel asserts that he did not receive notice of the OSC re: dismissal or other hearing notices because of overlapping communication failures during the relevant period. Counsel states that his firm experienced mail-forwarding problems following an office relocation and prolonged email server outages that prevented access to firm email accounts for weeks at a time. Counsel further contends that opposing counsel sent notices and filings to an Irvine/Spectrum address that is not the firm's litigation service address and does not route construction-defect litigation mail to litigation staff. As a result of these issues, counsel maintains that he did not receive the OSC notice, was unaware of the hearing, and therefore failed to appear. Counsel characterizes the resulting dismissal as the product of inadvertent attorney error rather than intentional conduct and states that he takes responsibility for the procedural missteps.

Defendants dispute that Plaintiffs' counsel lacked notice of the OSC or other hearings and claim that the dismissal resulted from repeated failures to comply with case management obligations despite actual notice. Defendants assert that the court mailed notices of the CMCs and OSC directly to Plaintiffs' counsel and that defense counsel, pursuant to court order, provided notice of subsequent hearings by emailing Plaintiff's counsel and staff and by serving CMC and OSC statements with proofs of service. Defendants further note that Plaintiffs' counsel personally appeared at prior case management conferences at which future hearing dates were set in open court, yet failed to file required CMC statements, failed to appear at multiple hearings, and never raised any service or notice issues before the case was dismissed. Defendants characterize the conduct as a pattern of inattention or failure to prosecute, not excusable neglect.

Under CCP section 473(b), the court must grant relief from a judgment for “attorney neglect,” even inexcusable neglect, when an application for relief is made within six months after entry of judgment; is in proper form; and is accompanied by “an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.” For purposes of mandatory relief under section 473(b), counsel's errors need not be excusable. (*Billings v. Health Plan of America* (1990) 225 Cal.App.3d 250, 256.) Given counsel's declaration admitting fault for the failures leading up to the dismissal, the Court will grant mandatory relief.

Tliche v. Van Quathem (1998) 66 Cal.App.4th 1054, counsels in favor of vacating the dismissal. There, the trial court dismissed a case after plaintiff's counsel failed to appear at a hearing on an OSC re failure to file proof of service. The Court of Appeal reversed the dismissal, reasoning that service is a

task ordinarily controlled by counsel and there was no evidence in the record of client fault, prior sanctions, or a pattern of willful delay. This, the court held, violated governing principles under CCP section 575.2, subdivision (b), and Government Code § 68608, subdivision (b), which require courts to impose sanctions that are proportionate and consider attorney fault separately from client responsibility. (See also, *Levitz v. The Warlocks* (2007) 148 Cal.App.4th 531, 535-36; *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 212; *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478.) So it is here. The procedural failures that led to dismissal were attributable to counsel, not Plaintiffs, and there is no evidence of prior sanctions or willful delay by Plaintiffs.

Defendants argue that vacating the dismissal would prejudice them because certain claims are now barred by applicable statutes of limitation and/or repose. The court acknowledges this argument but concludes that such asserted prejudice does not preclude mandatory relief under CCP section 473(b). The obligation to continue litigating the case is not cognizable prejudice. Rather, a party opposing relief must present evidence of actual prejudice such as missing witnesses, destroyed evidence, or similar circumstances affecting the ability to defend the case. (See, e.g., *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

Attorney Fees and Costs Under CCP § 473(b)

Where relief is granted under the mandatory relief prong of CCP section 473(b), the court shall direct the attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted based on an affidavit of attorney fault, Plaintiffs' counsel is obligated to pay Defendants' reasonable attorney fees and costs incurred in opposing the motion. Defendants may contest the tentative ruling and request a continuance of the hearing for the limited purpose of submitting a declaration addressing the amount of fees sought.

3. 9:00 AM CASE NUMBER: C23-00293
CASE NAME: INTERSTATE FIRE & CASUALTY COMPANY VS. CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MAGGIE BURRESON FOR DII CHEVRON ENVIROMENTAL AND CHEVRON USA
FILED BY: CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
TENTATIVE RULING:
Granted.

4. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**
FILED BY: SEQUOIA EQUITIES, INCORPORATED
TENTATIVE RULING:
Before the Court is a motion by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 5, 2026.**

Background

This action is a putative class action ("Class Action") filed by Kiara Ross, Felicia Costa, and Mark Peipowski ("Class Plaintiffs") against Sequoia Equities, Incorporated, Alder Creek Management, Inc., and numerous other entities alleged to be owners of apartment buildings in which the plaintiffs and

class members currently reside or have resided. The first amended class action complaint alleges causes of action for violations of Civil Code section 1950.5 regarding tenant deposits and of the Unfair Competition Law, Business & Professions Code section 17200, *et seq.* ("UCL"), negligence, and defamation. On December 10, 2024, the Court filed an order on the parties' Stipulation re: Dismissal of Defendants; Tolling Agreement pursuant to which all defendants other than Sequoia and Alder were dismissed as defendants in the Class Action.

Subsequent to the commencement of the class action case, Fuller Properties, LLC and more than 20 other entities ("Fuller Plaintiffs") filed suit against Sequoia and Alder, initiating the related action C24-01538 ("Landlord Action"). The second amended complaint in the Landlord Action filed on December 23, 2025 alleges seven causes of action against Sequoia and Alder, including breach of fiduciary duty, fraud and intentional misrepresentation, negligent interference with prospective business advantage, broker's constructive fraud, declaratory relief, and accounting. The claims as alleged arise out of the Sequoia/Alder Defendants' obligations to the Fuller Plaintiffs under a management contract and their duties as agents for Plaintiffs.

Motions to Consolidate

On June 25, 2025, the Fuller Plaintiffs filed a motion to consolidate the Landlord Action with this Class Action. The Landlord Action was assigned to Department 9, the Honorable John P. Devine, and the motion to consolidate was set for hearing in Department 9 on October 13, 2025. On June 26, 2025, the Fuller Plaintiffs filed a copy of their notice of motion and motion to consolidate the cases in this Class Action, which is the low-numbered case (C23-02401). A hearing on the consolidation motion in this Class Action was set for November 20, 2025.

Other hearings in this case were also scheduled for November 20, 2025. By order filed November 12, 2025 on a stipulation of the parties, the Court continued all hearings set for November 20, 2025 to January 22, 2026.

On October 13, 2025, Department 9 issued a tentative ruling on the Fuller Plaintiffs' motion to consolidate in the Landlord Action that was not timely contested and became the order of the Court. (See Landlord Action 10/13/2025 Min. Order.) The hearing on the consolidation motion in the Landlord Action was vacated. The parties were advised that pursuant to Local Civil Rule 3.49 (renumbered effective July 1, 2025, and previously numbered 3.50), "Motions to consolidate must be noticed for hearing in the department which is assigned to the lowest numbered case of those cases proposed for consolidation." (See *also* Cal. R. Ct., Rule 3.350(a)(2).) (Landlord Action 10/13/2025 Min. Order.) They were further advised that "the moving parties' memorandum and declarations in support of the motion, the opposition pleadings, and any reply must be filed and served in the low-numbered case, *Ross et al. v. Sequoia Equities, etc., et al.*, Case No. 23-02401 pending in Department 39." (Landlord Action 10/13/2025 Min. Order.)

Analysis and Disposition

As of the time of preparation of this tentative ruling, the motion papers filed in this case include only a notice of motion and motion, without any of the supporting pleadings, and the moving parties did not file a copy of the reply that they had previously filed in the Landlord Action. On January 15, 2026, Fuller Properties and related parties filed their opposition papers from the Landlord Action in this case, and a declaration by their counsel acknowledging Judge Devine's prior order and their oversight

in not filing the opposition pleadings in this case. The Court does not have before it in this case the pleadings necessary for the Court to rule on the merits of the consolidation motion. The Court therefore continues the hearing.

Moving parties shall file in this Class Action copies of all of their moving papers and their reply previously filed in the Landlord Action **by January 29, 2026**.

5. 9:00 AM CASE NUMBER: C23-03203
CASE NAME: BRYANT POTTS VS. BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
***HEARING ON MOTION IN RE: RELIEF FROM WAIVER OF DISCOVERY OBJECTIONS**
FILED BY: BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
TENTATIVE RULING:

Off calendar. Withdrawn by moving party.

6. 9:00 AM CASE NUMBER: C23-03307
CASE NAME: PAWNEE LEASING CORPORATION VS. SARFARAZ DHILLON
***HEARING ON MOTION IN RE: RELEASE AND DISMISS ABSTRACT OF JUDGMENT**
FILED BY: DHILLON, SARFARAZ SINGH
TENTATIVE RULING:

The Abstract of Judgment issued on 6/3/2024 is ordered quashed as to Sarfaraz Singh Dhillon as of 8/11/2025. Plaintiff is ordered to give notice to the County in which the Abstract of Judgment was recorded.

The Court notes that entities (such as KUT Global Corporation) cannot be self-represented, so if KUT Global is a separate entity (as opposed to a dba), it will need to appear via answer with an attorney of record.

7. 9:00 AM CASE NUMBER: C24-00237
CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: BEARE, CONNOR JEREMY
TENTATIVE RULING:

Hearing required on one issue.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. Background and Settlement Terms

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.

The proposed settlement would certify a class of thirteen persons who received the letters from defendant. Defendant would pay \$6,500 (based on a statutory penalty provision), with a minimum payment of \$500 to each class member. Defendants would be primarily responsible for administering the notice and implementation of the settlement.

If some class members are located and sent checks, but do not cash the checks, the remaining funds would be paid to a cy pres recipient, Bay Area Legal Aid. Counsel is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must “notify the court if the attorney has a connection to or a relationship with a nonparty recipient.” (C.C.P. § 382.4.) In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided “to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]” of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class.” Bay Area Legal Aid meets this requirement.

Defendants would agree not to engage in further debt collection practices in California without proper registration. Plaintiff would receive a service award of \$2,000. Plaintiff’s counsel would apply for an attorney fee of \$45,000, as part of the process of final approval of the settlement.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Objections may be made in writing within sixty days after initial notice, or may object at the final fairness hearing. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The settlement contains release language covering all of the “released claims,” “arising from or relating to collection letters mailed by or on behalf of Defendants in the form attached as Exhibit “1” to Plaintiff’s Class Action Complaint filed herein[.]” (Agreement, Par. 2.16.) Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.”] “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal written discovery was undertaken. The matter settled after arms-length negotiations.

Counsel attest that they have analyzed the case, and that the result achieved in this litigation is fair, adequate, and reasonable.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

(See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks \$45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of \$2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

Hearing required in order to schedule filing of a proper declaration. Counsel need to provide a declaration with respect to any relationship with the cy pres recipient in compliance with Code of Civil Procedure section 382.4. Subject to provision of such information the Court would find that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

If preliminary approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-03434
CASE NAME: DANIEL OLEJNIK-ROLIZ VS. MARCO ANTONIO MEZA ORTEGA
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
***TENTATIVE RULING**
Off calendar. Moving party was dismissed 12/18/25.

9. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
HEARING ON DEMURRER TO: COMPLAINT

FILED BY: NBCUNIVERSAL MEDIA, LLC

TENTATIVE RULING:

Introduction

Before the Court is Defendant NBC Universal Media, LLC's ("NBC") Demurrer. The Demurrer relates to Plaintiffs Complaint for privacy related cause of actions.

For the following reasons, **the Demurrer is sustained as to the claims regarding NBC Sports, Telemundo, and Meta Pixel, with leave to amend and overruled as to the remaining claims. The amended pleading shall be filed within 30 days of receipt of notice of this order.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Sheri Pan. On August 08, 2025, Defendant's counsel met and conferred via teleconference and could not come to a resolution about the Demurrer. (Pan Decl. at ¶ 2.)

Request for Judicial Notice

Defendant NBC requests the Court to take judicial notice of three exhibits. Exhibits A and B are Los Angeles County Superior Court rulings on Demurrers. A court may take judicial notice of records of any court. (See Evid. Code § 452(d) (providing "[r]ecords of . . . any court of this state" are among the matters that may be judicially noticed).)

Exhibit C is the Contra Costa County Superior Court's Website Privacy Policy. The Contra Costa Superior Court website is public, and the privacy policy contained therein is not reasonably subject to dispute and is capable of immediate and accurate determination. (See Evid. Code § 452 (c), (d), (h); People v. Buchanan (2022) 85 Cal.App.5th 186, 194 n.5 (agreeing to judicially notice language from the California courts' website under Evidence Code § 352(c) and (h)).) §§

Since all Exhibits are supported by proper authority, **judicial notice is granted for Exhibits A-C.**

Statement of Facts

Defendant operates several media websites including NBC News, NBC Sports, Telemundo, and Rotten Tomatoes (the "Websites"). (Complaint ¶ 2.) When users visit these Websites, Defendant automatically installs tracking technologies—specifically the Adnxs Tracker, Magnite Rubicon Tracker, and Meta Pixel—on users' browsers without their knowledge or consent. (Complaint ¶¶ 2, 36-37.)

These trackers function as "pen registers" under California law by capturing and transmitting users' IP addresses and other routing, addressing, and signaling information to third parties including Xandr (Microsoft), Magnite, and Meta. (Complaint ¶¶ 3, 37.) IP addresses are unique numerical identifiers that reveal geographic location data and constitute personally identifiable information. (Complaint ¶¶ 21-22.) The trackers also install persistent cookies that create unique identifiers for each browser, enabling comprehensive tracking of users' activities across multiple sessions and locations. (Complaint ¶¶ 42-45, 50-53, 58-61.)

Defendant uses these tracking technologies to monetize its websites through targeted advertising and analytics, generating substantial revenue from the unauthorized collection of users' private data. (Complaint ¶¶ 4, 46, 53, 62.) The tracking occurs automatically and invisibly in less than a second, before users can access any privacy disclosures located at the bottom of webpages. (Complaint ¶¶ 44, 52, 60, 64.) Users are never presented with pop-up windows, banners, or other notifications

requesting consent for this data collection. (Complaint ¶ 63.) Plaintiffs regularly accessed Defendant's websites from California using their personal devices and had their IP addresses and other personally identifying device information collected without authorization. (Complaint ¶¶ 68-73.) Defendant obtained no court order authorizing this surveillance. (Complaint ¶ 65.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098-1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

Standing for Claims Regarding NBC Sports, Telemundo, and Meta Pixel

As to the claims Regarding NBC Sports, Telemundo, and Meta Pixel, Plaintiffs lack standing because they do not allege they visited those Websites, which are also the only ones that allegedly used the Meta Pixel. "It is elementary that the named plaintiff in a class action must be a member of the class he purports to represent." (*Trotsky v. Los Angeles Fed. Sav. & Loan Assn.* (1975) 48 Cal.App.3d 134, 146.) Because Plaintiffs are not members of the putative class with respect to those allegations, they should be dismissed. Defendant's Demurrer as to these claims are sustained with leave to amend.

CDAFA Penal Code § 502

Plaintiffs bring their CDAFA claim under Cal. Penal Code Section 502 based on NBC's unauthorized installation of third-party tracker cookies on Plaintiffs' web browsers unbeknownst to Plaintiffs, alleging that NBC knowingly and without permission: 1) altered and used Plaintiffs' data and computer systems (Penal Code § 502(c)(1)); 2) took and made use of the data, including IP addresses, from Plaintiffs' computers, by disclosing that data to third parties (Penal Code § 502(c)(2)); 3) added and altered data and computer software on Plaintiffs' computers (Penal Code § 502(c)(4)); and 4) caused those trackers to access Plaintiffs' computers (Penal Code § 502(c)(6) and (7)). (Complaint ¶¶ 81-101.)

Defendant NBC calls the CDAFA an "anti-hacking statute" and urges dismissal because its installation of trackers on Plaintiffs' computers were not computer hacks. (Demurrer at 7. Not so. The California

Legislature enacted CDAFA with the intent to “expand the degree of protection afforded to individuals [...] from [...] unauthorized access to [...] computer data and computer systems, and declared that “protection of the integrity of all types and forms of [...] computers, computer systems, and computer data is vital to the protection of the privacy of individuals.” Cal. Penal Code § 502(a) (emphasis added). Moreover, NBC ignores Plaintiffs’ repeated allegations that its installation of trackers on their computers was unauthorized. (Complaint ¶¶ 4, 46, 53, 62, 73, 63 (“At no time when users visit any of the NBC Websites does Defendant request or obtain consent from users before installing the Trackers on their browsers”).)

Defendant’s IP address ownership argument does not account for the additional personally identifying browser and device information the trackers record and disclose, above and beyond IP addresses. (Complaint ¶¶ 2, 42, 45, 50, 53, 61, 72.) Plaintiffs have an ownership interest in this uniquely personal data.

Defendant NBC argues they were engaged in mere “reactive data collection” here, but the Complaint alleges that Defendant NBC caused code to be installed on Plaintiff’s devices that surreptitiously and without consent recorded and shared personal device information with third parties. (See *Brown v. Google LLC*, 685 F. Supp. 3d 909, 939 (N.D. Cal. 2023) (rejecting “reactive data collection” argument and sustaining CDAFA count at summary judgment based on Google’s unauthorized installation of tracking code on plaintiffs’ computers); Complaint ¶¶ 92-97.)

Plaintiffs have alleged, “[b]ased on Defendant’s unauthorized installation and storage of third-party tracker cookies on Plaintiffs’ and Class members’ web browsers, as alleged above, Defendant knowingly accessed and without permission altered and used Plaintiffs’ and Class members’ data and computer systems in violation of Penal Code § 502(c)(1).” (Complaint ¶ 94.) In other words, Plaintiffs alleged Defendant actively installing the tracking code on internet users’ browsers. (Complaint ¶¶ 40-42, 49-50, 56-57 (discussing implementation of the various trackers on Plaintiffs’ and class members’ web browsers).)

Finally, Plaintiffs adequately allege compensatory damages, including by explaining how Defendant NBC was unjustly enriched by using their personally identifying information obtained from each of the Trackers in violation of CDAFA to maximize revenue from selling advertising space on the Websites. (Complaint ¶¶ 4, 46, 53, 62, 99.) The statute does not define ‘damage or loss’ and the plain reading of ‘damage or loss by reason of a violation’ of CDAFA is that any loss due to the CDAFA violation is cognizable. See Cal. Penal Code § 502(e)(1)”; *Rodriguez v. Google LLC* (N.D. Cal. 2025) 772 F. Supp. 3d 1093, 1109 (plaintiffs stated a CDAFA claim under a disgorgement theory).)

The Demurrer is overruled for the cause of action for violation of Penal Code § 502.

CIPA Penal Code 638.51

First, Plaintiffs have suffered injury and have standing to bring suit. Penal Code Section 637.2 explicitly states that “[i]t is not a necessary prerequisite [...] that the plaintiff has suffered, or be threatened with, actual damages.” (Penal Code § 637.2(c); *Ion Equipment Corp. v. Nelson* (1980) 110 Cal. App. 3d 868, 882 (“actual damages are not a necessary prerequisite to an action pursuant to section 637.2”).)

Plaintiffs have adequately alleged that the trackers are pen registers fall within CIPA’s purview. “By the plain meaning of § 638.50(b), collection of the recipient phone number or IP address is not a required element. All that is required is that the Trackers record addressing information transmitted by the user’s computer or smartphone in connection with the outgoing HTTP request to Fandom’s website, regardless of whether that addressing information pertains to the sender or the recipient of

the communication at issue.” (*Vishal Shah v. Fandom, Inc.* (N.D. Cal. 2024) 754 F. Supp. 3d 924, 928-29.)

The Demurrer is overruled for the cause of action for violation of Penal Code § 638.51.

Invasions of Privacy

Plaintiffs plead two cognizable causes of action for invasion of privacy. The first, intrusion upon seclusion at common law, requires Plaintiffs to allege facts showing that (1) NBC “intentionally intrude[d] into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy”; and (2) the intrusion “occur[red] in a manner highly offensive to a reasonable person.” (*Hernandez v. Hillside Inc.* (2009) 47 Cal. 4th 272, 286.) The second, violation of the right to privacy provided by Article I, section 1 of the California Constitution, requires Plaintiffs to allege (1) “a legally protected privacy interest”; (2) a reasonable expectation of privacy; and (3) an intrusion “constitut[ing] an egregious breach of the social norms” that is “highly offensive.” (Id. at 287.)

Given the similarity of these legal theories, “courts consider the claims together when both are invoked and ask whether: (1) there exists a reasonable expectation of privacy, and (2) the intrusion was highly offensive.” (*In re Facebook, Inc. Internet Tracking Litig.* (9th Cir. 2020) 956 F.3d 589, 601 (“Facebook Tracking”). Both branches of this inquiry are mixed questions of law and fact. (*Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370, (citing *Hill v. Nat’l Collegiate Athletic Assn.* (1994) 7 Cal. 4th 1, 40). Only if the allegations “show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law.” (Id. at 370 (citing *Hill*, 7 Cal.4th at 40).)

Reasonable Expectation of Privacy

Defendant’s challenge to Plaintiffs’ invasion of privacy claims comes down to its contention that they did not have a reasonable expectation of privacy in the use and collection of their IP address and other data that Defendant collected without their consent. Plaintiffs have properly alleged that they did have a reasonable expectation. Defendant’s continued focus on IP address collection only ignores the other personal device data in which Plaintiffs also had a reasonable expectation of privacy.

Defendants’ contention that there can be no expectation of privacy in IP addresses because they are commonly shared with the website they visit or used by internet service providers for routing purposes is separate from Plaintiffs’ expectations that their IP addresses (and other personal device data) would be shared with third parties. (*Shah*, 754 F. Supp. 3d at 932.)

Plaintiffs allege Defendant was collecting more than just IP addresses, including device details (make, model, operating system), browser information, and other device fingerprint information, allowing NBC and the relevant third parties (Xandr, Magnite, and Meta) to create a comprehensive record of a user’s Website activities over time. (Complaint ¶¶ 2, 45.) The court in *In re Google RTB* recognized a reasonable expectation of privacy in the collective information Defendant gathered, which can be compiled into unique profiles linking users across geographic locations and devices. (*Shah*, 754 F. Supp. 3d at 932 (citing *Facebook Tracking*, 956 F.3d at 603) (reasonable expectation of privacy where Facebook allegedly collected and created “highly personalized profiles from [plaintiffs’] sensitive browsing histories and habits.”).)

Highly Offensive Intrusion

Courts inform their assessment of an intrusion’s offensiveness with “a holistic consideration of factors such as the likelihood of serious harm to the victim, the degree and setting of the intrusion, the intruder’s motives and objectives, and whether countervailing interests or social norms render the

intrusion inoffensive.” (*Hernandez*, 47 Cal. 4th at 287.) This calculus “focuses on the degree to which the intrusion is unacceptable as a matter of public policy.” (Id.)

Given this fact-intensive inquiry, the question of “[w]hether the conduct was highly offensive can rarely be resolved at the pleading stage.” (*In re Google RTB Consumer Privacy Litig.* (N.D. Cal. 2022) 606 F. Supp. 3d 935, 946 (citing *Facebook Tracking* (9th Cir. 2020) 956 F. 3d at 606); *Katz-Lacabe v. Oracle Am., Inc.* (N.D. Cal. 2023) 668 F. Supp. 3d 928, 943 (“Under California law, courts must be reluctant to reach a conclusion at the pleading stage about how offensive or serious the privacy intrusion is.”).) Here Defendants challenge on the highly offensive intrusion prong is an issue of fact which is inappropriate to discuss at the pleading stage.

The Demurrer overruled is overruled for both the intrusion upon seclusion and invasion of privacy causes of action.

UCL- Business and Professions Code § 17200 et seq.

From the Pleadings, Plaintiffs allegations are all tethered to a to some specific “constitutional, statutory, or regulatory provisions...” (*Scripps Clinic v. Super. Ct.* (2003) 108 Cal. App. 4th 917, 940.) Here, Plaintiff uses their other causes of action to act as pendant claims in which the wrongful conduct requirement can tether or attach to. Since Plaintiffs have multiple cause of actions has survived Demurrer, the Demurrer for this cause of action must be overruled.

Breach of Confidence

To prevail on a claim for breach of confidence under California law, a plaintiff must demonstrate that: “(1) the plaintiff conveyed confidential and novel information to the defendant; (2) the defendant had knowledge that the information was being disclosed in confidence; (3) there was an understanding between the defendant and the plaintiff that the confidence be maintained; and (4) there was a disclosure or use in violation of the understanding.” (*Berkla v. Corel Corp.* (9th Cir. 2002) 302 F.3d 909.)

As discussed above with respect to Plaintiffs’ invasion of privacy claims, California law recognizes the confidentiality of Plaintiffs’ IP addresses, particularly when collected alongside a host of other personal information, such as browser data, cookies and unique identifiers and collectively leveraged to create detailed profiles of users’ daily routines and behaviors. Further, because Plaintiffs’ compiled personal information is unique to them, it by definition is novel. (See also *In re Google RTB Consumer Privacy Litig.*, 606 F. Supp. 3d at 947-48 (finding that the combination and totality of various different categories of users’ personal information makes such disclosure novel, finding that plaintiffs adequately alleged the confidentiality and novelty of information Google collected and disclosed for advertising purposes); *Riley v. Cal.* (2014) 573 U.S. 373, 395-97 (acknowledging confidentiality of browsing history and geolocation information).)

Thus, the Demurrer is overruled as to this cause of action.

Conclusion

While the parties have relied extensively on unpublished authorities from both other Superior Courts and Federal District Courts, it is more appropriate to focus the cited authorities to published state and federal cases.

For the reasons analyzed above, **the Demurrer is sustained as to the claims regarding NBC Sports, Telemundo, and Meta Pixel with leave to amend and overruled as to the remaining claims. The**

amended pleading shall be filed within 30 days of receipt of notice of this order.

10. 9:00 AM CASE NUMBER: L24-04469

CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT (CONTINUED FROM 11.13.2025)**

FILED BY:

TENTATIVE RULING:

This matter is continued from a prior hearing. Before the prior hearing, the Court tentatively denied defendant's motion to set aside default. (That tentative ruling, dated November 12, 2025, is adopted by reference.) At oral argument, defendant raised additional authority indicating that the court had equitable discretion to set aside the default even in the absence of compliance with other statutory limitations. (*Rappleyea v. Campbell* (1984) 8 Cal.4th 975.) By order dated November 14, 2025, the court continued the hearing in order to give plaintiff an opportunity to address the *Rappleyea* case. (That order also is incorporated by reference. In supplemental briefing, plaintiff does not dispute that under *Rappleyea*, the Court has discretion to grant the motion under equitable principles. It does, however, dispute that the equitable factors exist in this case.

Considering the equitable factors, the Court finds that defendant had agreed to a settlement of the case, and had made payments under its terms, although he had not signed and executed the agreement. The correspondence, however, clearly stated that there was no agreement, even if payments were made, unless the stipulation was signed. In addition, defendant had served an answer to the complaint but had not filed it. He contends that he was "encouraged" by the published Local Rules to file his documents electronically, when in fact there were delays in processing that resulted in him not being advised that his General Denial was rejected until well after his default had been entered. But defendant did not submit his General Denial for filing until December 12, 2024, while the default was entered on December 6th. The fact that there was delay in rejecting the General Denial is not the reason he was in default. Nor does it explain all but 51 days of his delay in moving to set aside the default.

The motion to set aside the default is denied.

11. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE OF GENNA LAUREN PORTNER

FILED BY: SYNGENTA AG

TENTATIVE RULING:

Granted, subject to submission of proof of service on the State Bar.

12. 9:00 AM CASE NUMBER: MSC16-01118

CASE NAME: YUE VS. TRIGMAX SOLUTIONS

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSE TO SPECIAL INTERROGATORIES**

FILED BY: YUE, DONGXIAO

TENTATIVE RULING:

Plaintiff Dongxiao Yue moves that defendant Trigmax Solutions LLC be compelled to provide responses without objection to Special Interrogatories 1-16 and Requests for Production of Documents 1-14. No opposition has been filed.

Plaintiff establishes that the requests were served, and Trigmax did not provide a timely response. Plaintiff followed up with an email request to counsel for Trigmax, but he expressly declined to provide a response.

The basis for the non-response arises from the previous appeal. Another judge previously assigned to this case granted a motion to dismiss for failure to bring the case to trial within 5 years. Plaintiff appealed, and the Court of Appeal reversed. Trigmax's counsel maintained that because discovery had been closed before the initial trial date, the reversal and issuance of a remittitur did not reopen discovery. Thus, the discovery was improper until the trial court issued an order reopening discovery. The parties debated this issue in their electronic mail, each relying on *Beverly Hospital v. Superior Ct.* (1993) 19 Cal.App.4th 1289, 1291, in which the court held that "a mistrial, new trial or reversal of the judgment on appeal automatically restarts the time limitations on discovery." While other Courts of Appeal disagreed, the Supreme Court concluded that *Beverly Hospital* is correct in *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 247, reversing an appellate court conclusion that no additional discovery for the purposes of the new trial is permitted without leave of the trial court. In this Court's view, this means that leave of court or a "reopening" of discovery was not required to serve further discovery.

The motion to compel further answers is granted. Defendant Trigmax Solutions is to provide answers, without objection, within 30 days of notice of this ruling.

Plaintiff's request for sanctions (the \$60 filing fee), is granted.

13. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY: GARAVENTA, SILVIO
TENTATIVE RULING:

Before the Court is a motion by plaintiff Silvio Garaventa, Jr., for payment of expenses, including attorneys' fees, pursuant to Corporations Code section 2000. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 19, 2026**, for submission of supplemental papers, as set forth below.

Background

Plaintiff Silvio Garaventa filed a complaint initiating this action in 2019. The action arises out of business disputes between Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that at that time, Garaventa and Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each a director of Pine Hollow. (FAC ¶¶ 1, 2.) Garaventa alleges he and Azari also each held 50 percent membership

interests in the limited liability company defendant AGL Enterprises, LLC. (FAC ¶¶ 1, 2, 4.)

Among the causes of action alleged by Garaventa was a cause of action for involuntary dissolution of Pine Hollow pursuant to Corporations Code section 1800. Azari notified the Court and counsel of his election to exercise his right to purchase Garaventa's 50% ownership interest in AGL under the AGL operating agreement and in Pine Hollow pursuant to Corporations Code section 2000(a). Azari made a motion to compel arbitration of the causes of action in the FAC related to AGL and to stay the action. The Court granted the motion to compel arbitration as to the AGL-related claims and stayed the action as to the claims related to AGL, but not the causes of action related to Pine Hollow. (Order filed 7/16/2020.)

The Court also granted Garaventa's motion to appoint appraisers in part to the extent it sought the appointment of appraisers to value Pine Hollow in connection with Azari's Corporations Code section 2000 election. (7/16/2020 Order.) The Court subsequently issued its Order Pursuant to Corporations Code Section 2000 filed August 18, 2020 based on Azari's election to purchase Garaventa's 50% ownership interest in Pine Hollow. In that order, Azari was ordered to post a bond of \$250,000, and the Court appointed three appraisers to value Pine Hollow, among other things. (8/18/2020 Order.)

On May 17, 2022, after several prior hearings addressing the status of the appraisals of Pine Hollow, the Court stayed the remainder of the action, in particular regarding the valuation of Pine Hollow, pending the completion of the AGL arbitration and the valuation of AGL through that proceeding. (5/17/2022 3rd Interim Order After Hearing.) At a status hearing on July 21, 2023, the Court's minute order indicates Plaintiff asked the Court to lift the stay to allow the valuation of Pine Hollow to proceed. (7/21/2023 Min. Order.) The stay remained in effect, and a trial setting conference was set for September 27, 2023. (7/21/2023 Min. Order.)

The Court advised the parties at the September 27, 2023 hearing that the case was being reassigned to Department 12 before Judge Treat and set a further hearing before Judge Treat on January 29, 2024. The minute order on the January 29, 2024 hearing reflects the AGL arbitration award and valuation had just been issued. (1/29/2024 Min. Order.) The Court set and held two continued case management conferences as the parties indicated they were attempting to reach a stipulation on the bifurcation of the Pine Hollow valuation determination and the other claims in the FAC related to Pine Hollow. On December 12, 2024, the Court granted the motion to bifurcate the Pine Hollow valuation from other issues in the case. (12/12/2024 Order.) A further case management conference was held on January 14, 2025 after the case was reassigned to Department 39, before Judge Weil.

Azari attempted to withdraw his buy-out election under Corporations Code section 2000 in Azari's Status Report re: Section 2000 Special Proceeding filed February 13, 2025. At the Court's request, the parties provided supplemental briefing on whether Azari had the right to withdraw the election and on the appraisals of Pine Hollow prepared by the three appraisers. On March 25, 2025, Azari submitted a \$250,000 cashier's check to the Court as a cash bond, the bond that had been ordered posted in the August 18, 2020 Order.

At the March 28, 2025 hearing, the Court rejected Azari's attempt to withdraw his buy-out election and took the matter under submission after the parties' argument on the valuation issue. After taking the matter under submission, the Court issued its Order After Hearing and Decree Under Corporations Code § 2000 ("Section 2000 Decree") which was filed May 2, 2025. (5/2/2025 Section

2000 Decree.)

Section 2000 Decree determined the valuation of Pine Hollow and set a 60-day deadline for Azari to complete the buy-out of Garaventa's ownership pursuant to Corporations Code section 2000(c). (5/2/2025 Section 2000 Decree.) There is no dispute that Azari failed to complete the buy-out of Garaventa's interest in Pine Hollow by the Court-ordered deadline.

On August 13, 2025, after the deadline for the buy-out passed, Garaventa filed his motion for payment of expenses under Corporations Code section 2000(c). Garaventa seeks judgment for attorneys' fees and costs of \$184,778.94, including \$148,781.25 in attorneys' fees, \$14,247.69 in costs, and \$21,750 for one-half the amount Pine Hollow paid for the appraisals valuing the corporation. (MPA ISO Mot. p. 13, ll. 10-20.) Azari opposes the motion.

Law Applicable to the Determination of the Motion

Corporations Code section 2000 in regard to an award of expenses provides:

(b) If the purchasing parties (1) elect to purchase the shares owned by the moving parties, and (2) are unable to agree with the moving parties upon the fair value of those shares, and (3) give bond with sufficient security to pay the estimated reasonable expenses (including attorneys' fees) of the moving parties if those expenses are recoverable under subdivision (c), the court . . . shall stay the winding up and dissolution proceeding and shall proceed to ascertain and fix the fair value of the shares owned by the moving parties.

(c) The court shall appoint three disinterested appraisers The order shall prescribe the time and manner of producing evidence, if evidence is required. . . . The court shall enter a decree, which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree. If the purchasing parties do not make payment for the shares within the time specified, judgment shall be entered against them and the surety or sureties on the bond for the amount of the expenses (including attorneys' fees) of the moving parties. . . .

(Corp. Code § 2000(b) and (c) [emphasis added].)

With regard to the standards for the Court awarding attorneys' fees and costs, the Court in *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315 explained that courts assess attorneys' fees generally under a "lodestar" figure based on a compilation of the time spent by counsel multiplied by the reasonable hourly compensation for each attorney who rendered services. (*Id.* at 1321 ["The court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. [Citations omitted.]"].) "[A]scertaining the fee amount is left to the trial court's sound discretion. [Citations omitted.] Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. [Citations

omitted.]" (*Id.*)

Christian Research Institute does not preclude block billing or require denial of attorneys' fees solely because the fee records contain block billing. It is a factor the Court considers in the Court finding the services are compensable. (*Christian Research Institute, supra*, 165 Cal.App.4th at 1325.) (*See also Bell v. Vista Unified School District* (2000) 82 Cal.App.4th 672, 689.)

Analysis

Azari argues Garaventa's motion has an inadequate evidentiary basis upon which to grant him either attorneys' fees or costs and exceed the scope of expenses to which Garaventa is entitled under Corporations Code section 2000(c). Azari does not dispute that the rates charged by Plaintiff's counsel are reasonable. Azari also does not contend that the time actually expended by the professionals representing Garaventa was excessive for any of the tasks performed. Azari contests the fees requested as he contends they exceed the scope of services compensable under Corporations Code section 2000(c) and are not related to the appraisal of Pine Hollow. He also objects to the time entries as too vague to discern whether the work relates to the Pine Hollow appraisal.

The motion is supported by the Bowles Declaration which attaches billing summaries as Exhibit A and a summary of expenses as Exhibit B. As to one component of the lodestar calculation, the billing rates charged by the attorneys performing services, the Bowles Declaration provides the hourly rates of three attorneys, Bowles (\$425), Ms. Tomp (\$285), and Cheryl Noll beginning in October 2022 (\$385). Bowles explains why the rates are reasonable given (a) the nature of the services rendered and the issues involved, (b) the experience of the attorneys rendering the services, and (c) the fact that the rates were those in effect when the attorneys began work on the case and have not been increased since then. (Bowles Decl. ¶¶ 25-28.)

A. Nature of Expenses, Including Attorneys' Fees, Recoverable Under Corporations Code Section 2000(c)

There is limited case law interpreting Corporations Code section 2000 generally, and specifically with regard to the expenses and attorneys' fees that may be awarded if the "purchasing parties" fail to complete the share buy-out. The statute itself, however, provides guidance on the expenses and attorneys' fees which should be awarded. In context and based on the statutory language, the award should be for expenses and attorneys' fees related to the Corporations Code section 2000 special proceeding for appraising the value of the shares of the corporation for purposes of the buy-out election where appraisers must be appointed by the Court because the parties cannot agree on the share valuation. (Corp. Code § 2000(b) and (c).)

Both parties cite *Go v. Pacific Health Services, Inc.* (2009) 179 Cal.App.4th 522. The issues presented on appeal in that case were (a) whether the trial court erred in valuing the corporation and undervalued the plaintiff's shares, and (b) whether the trial court's decree erroneously directing the immediate wind up of the corporation if the purchasing defendants failed to complete the buyout within the time deadline set in the decree. (*Id.* at 525-526.) The Court of Appeal affirmed the trial court on both issues, but the published portion of the decision addressed only the propriety of the decree directing the immediate wind up of the entity. In concluding that the decree for the immediate wind up was appropriate, the Court explained that Corporations Code section 2000 if invoked begins a special proceeding that supplants the cause of action for involuntary dissolution

under Corporations Code section 1800. (*Id.* at 530.)

In affirming the trial court's decree, the Court described the process under Corporations Code section 2000(c), quoting from *Trahan v. Trahan* (2002) 99 Cal.App.4th 62, in which the Court explained that if the purchasing parties chose not to purchase the shares and permit the dissolution of the corporation to proceed, then the purchasing parties "only liability would be to pay the expenses (including attorneys' fees) incurred by the moving parties in the appraisal process. [Citation omitted.]" (*Trahan, supra*, 99 Cal.App.4th at 75, quoted at *Go, supra*, 179 Cal.App.4th at 531.) The Court in *Go* later reiterated this interpretation of the expense liability imposed by Corporations Code section 2000(c) in rejecting the defendants' position that they should have been allowed to contest the involuntary dissolution of the corporation under Corporations Code section 1800 after they invoked the buy-out election procedure and then decided not to buy the shares. (*Id.* at 531-532 ["If [dissolution] were not the inevitable outcome, then all majority shareholders facing an action for involuntary dissolution would invoke section 2000 if only for the purpose of delay, with nothing to lose other than the expense of the appraisal and attorneys' fees, knowing they could eventually litigate the action for involuntary dissolution on its merits." (Emphasis added.)].)

B. Azari's Liability Not Eliminated by Attempt to Withdraw His Buyout Election

As Azari concedes, the Court has previously considered the parties' extensive briefing on his right to withdraw his Corporations Code section 2000(a) buyout election roughly five years after the election was made. In making the election, the special proceeding of Corporations Code section 2000 supplanted Garaventa's involuntary judicial dissolution cause of action under Corporations Code section 1800. (*Go, supra*, 179 Cal.App.4th at 531-532; *Ontiveros v. Constable* (2018) 27 Cal.App.5th 259, 267.) The Court will not revisit its prior ruling on the withdrawal, and Azari's attempt to withdraw from his election under Corporations Code section 2000(a) provides no basis for the Court to deny the statutorily mandated payment of Plaintiff's expenses, including attorneys' fees, under Corporations Code section 2000(c).

C. Scope of Compensable Work in This Case

The Court rejects Azari's position that the only tasks that are properly charged or compensable "would be gathering and transmitting documents to the appraiser and reviewing appraisals – not motion practice, letters to the Court, or other court filings." (Opp. p. 10, ll. 12-15.) For example, Azari apparently contends that attorneys' fees and expenses incurred in connection with Garaventa's motion to appoint the appraisers for the Corporations Code section 2000 valuation should not be compensated under Corporations Code section 2000(c), based on Exhibit 1 to Azari's Opposition. The Court finds that services related to that motion pursuant to which the appraisers who valued Pine Hollow were appointed by the Court and given direction for their work are clearly within the scope of compensable expenses under Corporations Code section 2000(c).

As the statute and these case authorities explain, the "appraisal" under Corporations Code section 200(b) is a special proceeding, an alternative legal proceeding to involuntary dissolution. It requires Court hearings and Court action, with an opportunity for the parties to participate in the process by participating in hearings, presenting argument, and filing legal briefs to address issues that arise as part of the Court's ultimate determination of the valuation of the business based on the appraisals presented. The history of this case, with numerous hearings and pleadings filed by the parties in the

course of the Court's appointment of the appraisers to its Section 2000 Decree shows the "appraisal process" is not merely engaging three appraisers. The expenses to which Garaventa is entitled under Corporations Code section 2000(c) are not limited to those related to obtaining the three appraisals.

As the background summary above sets forth, the Court held a number of hearings regarding the status and timing of the Pine Hollow appraisal process, whether the action should be stayed based on the bearing the AGL arbitration might have on the Pine Hollow valuation, whether the Corporations Code section 2000 special proceeding to value Pine Hollow should be bifurcated from Plaintiff's other claims and causes of action related to Pine Hollow, whether Azari could withdraw his Corporations Code section 2000 buyout election, and what appraisal should be adopted as the valuation of Pine Hollow. The Court considers services involving or related to those activities to be reasonably related to the special proceeding for the appraisal of Pine Hollow and compensable under Corporations Code section 2000(c).

Azari argues Garaventa is seeking to recover "all expenses incurred in the action" with limited exception for the "excluded categories" described in the motion and the Bowles Declaration. (Opp. p. 11; Bowles Decl. ¶ 24.) Bowles declares that Garaventa has incurred over \$470,000 in attorneys' fees in the case and over \$85,000 in costs (Exh. B shows over \$83,000 in expenses through June 2025). (Bowles Decl. ¶ 24.) The expenses requested in the motion are considerably less than the total incurred, less than one-third of the total.

The Court also disagrees with Azari that no attorneys' fees or expenses after May 2, 2025 when the Court issued the Section 2000 Decree are expenses incurred in the appraisal process for purposes of Corporations Code section 2000. The appraisal process under the statute continued after that date while Azari made his determination whether to complete the buy-out and then when the consequences of Azari's failure to buy out Garaventa's shares continued the Corporations Code section 2000 process by causing the dissolution of Pine Hollow. The Court notes the fees requested in the motion end with time entries on June 25, 2025, while the next steps in the Corporations Code section 2000 proceeded.

On the other hand, the Court agrees with Azari that the time entries in Exhibit A to the Bowles Declaration appear to include some services that do not relate to the special proceeding for the appraisal of Pine Hollow. The Court agrees that activities that are related to the prosecution of the claims against AGL or against Azari for alleged wrongdoing in his management of Pine Hollow are not reasonably related to the valuation special proceeding.

Plaintiff's evidence, either in the time entries or narrative in the Bowles Declaration, does not connect counsel's work on any "discovery" to the Pine Hollow special proceeding and appraisal process so as to make those time entries compensable under Corporations Code section 2000(c). (See, e.g., time entries on 4/21/2020, 4/22/2020 (by LMT), 5/1/2020, 5/4/2020, 5/20/2020, 5/22/2020, 5/23/2020, 6/19/2020, 6/26/2020.) The Court is not aware of any discovery involved in or related to the appraisal process for Pine Hollow. If the supplemental filing and supplemental Bowles Declaration requested by the Court can demonstrate that discovery was conducted in relation to the appraisal of Pine Hollow and the discovery entries are actually connected to the appraisal process, the Court will re-evaluate the entries with that supplemental evidence.

In addition, there are time entries related to the initial motion for appointment of a receiver and

evaluation of the AGL operating agreement which the Court does not consider to be related to the special valuation proceeding for Pine Hollow. (*See, e.g.*, Bowles time entries on 11/1/2019, 11/4/2019, 11/5/2019, 11/7/2019.) The Court requests that Garaventa carve out time and fees for services related to the initial receiver motion filed by Azari, discovery (not merely the example entries cited above, but subject to Garaventa being able to demonstrate their connection to the appraisal process), any AGL-related services not already excluded from the Exhibit A time entry summary, and provide the Court in his supplemental filing a revised billing compilation, summary, and calculation of the attorneys' fees requested excluding those services.

D. Other Issues Regarding Plaintiff's Time Records

1. Lack of Time Keeper Hours Summaries

There is no summary of the number of hours of services for which compensation is requested and the applicable billing rate, either for all attorneys (yielding a blended rate) or by each time keeper, month-by-month, year-by-year, or in total. This information would be helpful to the Court in assessing the reasonableness of the attorneys' fees requested, given the lengthy time period covered (roughly 56 months) and the more than 110 pages of time entries filed. The manner in which the time entries are provided, with no month-end summaries or summary of hours, billing rate, and fees charged even at the end of the lengthy time entries, does not allow the Court to readily assess the reasonableness of the fees requested under a lodestar calculation based on the number of hours spent times the applicable billing rate. (*Christian Research Institute, supra*, 165 Cal.App.4th at 1321.)

2. Inconsistent Information and Missing Information on Some Time Keepers

There are also certain specific concerns the Court has regarding the evidence. Though Bowles states Ms. Tomp's billing rate is \$285/hour, the time records show services by "LMT" billed at \$310/hour, not \$285. (*See, e.g.*, time entries on 3/10/2020 - 3/13/2020.) (*Compare to* Bowles Decl. ¶ 27.) The \$310 per hour rate may be reasonable for Ms. Tomp, but the Court requires clarification from Bowles regarding the correct rate charged for her services, in case the \$310 rate in the time records was somehow incorrect, or if the \$285 hourly rate stated in the Bowles Declaration should be corrected as a misstatement.

There are time entries for several other time keepers not identified in the Bowles Declaration. (*See, e.g.*, time entries on 7/15/2020 and 4/30/2021 by DVL; time entries on 7/23/2020 and 11/11/2020 by JLP; time entries on 1/19/2021 and 2/1/2021 by "JCK" at \$310/hr.; time entries on 7/2/2021 and 7/6/2021 by "JMB" at \$335/hr.) (*Compare to* Bowles Decl. ¶¶ 25-27.) The Bowles Declaration does not identify the time keepers with these initials, explain their qualifications or professional role in the case, or provide evidence justifying the hourly billing rate for each person's services based on their experience and work. The Court requires this information to be included in the supplemental filing by Garaventa requested below.

3. Block Billing Entries, Redacted Content

Many of the time entries block out text regarding the substance of calls or emails between counsel and the client or the substance of legal research. The Court finds this understandable as an effort to protect attorney-client privileged or work product protected information. The Court views the reasonableness of the attorneys' fees requested not necessarily on a line-by-line item basis but on the

total hours expended, hourly rate, and total fees sought in light of the nature of the disputes involved and the services rendered. (*See Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 994 [detailed billing records not required; declaration of counsel with evidence of reasonable hourly rate, number of hours spent, and the tasks performed sufficient basis on which Court can award attorneys' fees].)

The Court can evaluate the redacted time entries in the context of the events in the case and the other surrounding entries which may include details regarding pleadings prepared, appraisals received and analyzed, and hearings attended which provide sufficient connection to the compensable services. (*See, e.g.*, time entry on 7/3/2020 stating "Emails regarding Opposition to Motion regarding Appraisers," time entry on 7/20/2020 which time entry on 7/17/2020 supports that the "Dictate" entry relates to the work with the appraisers, and time entry on 2/2/2022 where "dictate letter to client regarding" is supported by prior entries in the block regarding a call with one of the appraisers (Laversin) and a review of that appraiser's report.)

Block billing does not preclude the Court from awarding attorneys' fees for all or a portion of the time included in the block entry if the Court can discern the services are within the scope of compensable work described above, and the time spent and rates charges for the services are reasonable. Many of the so-called "block billing" entries in fact include specific time per task breakdowns, or there is more than sufficient content in the block billing to assess the reasonableness of the fee charged for the tasks performed. (*See, e.g.*, time entries on 11/8/2024 and 11/25/2024; time entry on 10/7/2024 for "Review of appraisals; work on proposal to Court regarding handling."). The Court does not find that block billed time entries in Exhibit A preclude the Court from assessing the reasonable attorneys' fees to be awarded in this case.

E. Plaintiff's Evidence Regarding Costs as Expenses

Exhibit B reflects the costs Garaventa seeks according to the Bowles Declaration. The 53-page exhibit lists a total of over \$83,000 in costs, but the Bowles Declaration indicates Garaventa is seeking recovery of only a fraction of that amount, \$14,247.69. There is no breakdown of which costs listed in the 53-page exhibit are part of the \$14,247.69 in costs Garaventa seeks. Exhibit B does not highlight the expense entries comprising the \$14,247.69 in costs. The Court cannot determine how Garaventa arrived at the \$14,247.69 in costs requested. Garaventa must provide supplemental papers highlighting the expenses for which he seeks payment on the 53-page expense list and demonstrating those costs are reasonably related to the Corporations Code section 2000(c) appraisal process.

The Court also notes that there are expense "task codes" in Exhibit B whose meaning is not obvious, such as "ae," "br," "cf," "jf," and "op." For any category of expenses for which costs are included in the request for payment, the supplemental papers filed by Garaventa should include the meaning of the associated task code and the type of expense it covers.

F. Claim for 50% of Appraisal Costs

Bowles declares the total appraisal fees were \$43,500 based on Pine Hollow's financials. (Bowles Decl. ¶ 29.) Garaventa asks for 50% of that amount as part of his expenses. Azari submits no contrary evidence contesting the cost of the appraisals, but Azari argues that Pine Hollow paid for the appraisals, not Garaventa, so Garaventa cannot recover this expense.

The Court finds Azari's position more persuasive. It is apparently undisputed by the parties that Pine Hollow, a separate legal entity, paid for the appraisal fees. Garaventa could have objected and sought to have the shareholders themselves divide payment of the appraisal fees. Garaventa, as the "moving parties" under Corporations Code section 2000 did not expend those fees, and the Court does not find the language of the statute allows the Court to award 50% of the appraisal fee as an expense incurred by Garaventa as a result.

Garaventa has pending claims against Azari and nominally Pine Hollow for alleged mismanagement and financial improprieties in the conduct of Pine Hollow's affairs. Garaventa may have remedies to address the appraisal fees in the context of his other claims in the case, but under the circumstances, an expense award under Corporations Code section 2000(c) cannot include that sum.

Supplemental Filings and Meet and Confer

The Court requests that Garaventa file and serve his supplemental filing, including a supplemental Bowles Declaration, addressing the information identified in this tentative ruling by **February 2, 2026**. Azari may file a supplemental opposition to Garaventa's supplemental filing **by February 9, 2026**.

With the guidance provided by this tentative ruling, the Court also requests that the parties meet and confer to attempt to resolve their disputes over the amount of expenses that should be awarded to Garaventa under Corporations Code section 2000(c) prior to the continued hearing on the motion.

Additional Notes on the Bowles Declaration

The Court disregards arguments in the Bowles Declaration regarding the merits of the disputes between Plaintiff and Azari for several reasons, including that argument is not properly included in a declaration as it is not evidence, that the arguments lack foundation, are hearsay, or are outside counsel's personal knowledge. (See, e.g., Bowles Decl. ¶¶ 8, 9, 12, 22, 30.) Bowles' summary of events in the case provide a case history and facts supporting the expense request, and his participation in the case provides foundation for his personal knowledge of those events.

14. 9:00 AM CASE NUMBER: N25-2444
CASE NAME: PETITION OF: MAUREEN MCCOOEY
HEARING IN RE: PETITION FOR RELEASE OF MECHANICS LIEN
FILED BY: MCCOOEY, MAUREEN

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m., for proper service of the petition. Civil Code section 8486(b) requires that the Petition be "served in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requests[.]" although the service declaration of Brendan Totah states that the petition was served "return receipt requested," the attached receipt from the U.S. Postal Service shows only that the documents were sent by priority mail. **Petitioner also will need to serve notice of the new hearing date.**